

DPDP 2023

Digital Personal Data Protection Act, 2023

Applicable DPDP Acts

User Query : IIIT DELHI is selling my data to another company and all my personal identification information is available on public

Job Id. : a6b55136-1506-4ee8-b59a-35ef876ac800/whatsapp:+919431006763

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APPLICABLE SECTIONS

Section 3 Definitions

This section defines various terms used in the Act, including "personal data", "data fiduciary", and "data principal". In this case, IIIT Delhi would be considered a "data fiduciary" and you would be the "data principal".

Section 5 Obligations of Data Fiduciaries

This section outlines the obligations of data fiduciaries, including obtaining consent from data principals, providing notice, and ensuring security and confidentiality of personal data.

Section 8 Grounds for Processing Personal Data

This section specifies the grounds on which personal data can be processed, including consent, legitimate use, and public interest.

Section 11 Rights of Data Principals

This section enumerates the rights of data principals, including the right to access, correct, and erase their personal data.

Section 13 Data Protection Impact Assessment

This section requires data fiduciaries to conduct a data protection impact assessment (DPIA) in certain circumstances, including when processing sensitive personal data.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 In this case, IIIT Delhi, as a data fiduciary, has a obligation to protect your personal data and ensure its confidentiality. By selling your data to another company without your consent, IIIT Delhi may have breached its obligations under **Section 5** . Additionally, making your personal identification information publicly available may be a violation of **Section 8** , as it may not be a legitimate or public interest-based ground for processing.

2 As a data principal, you have the right to access, correct, and erase your personal data under **Section 11** . You may also have the right to object to the processing of your personal data.

✓ STRENGTHS & RIGHTS

1 **Rights of data principals**
You have the right to control your personal data and seek redress for any breaches.

2

Protections and safeguards

The DPDP Act provides protections and safeguards for personal data, including the requirement for data fiduciaries to ensure security and confidentiality.

X RISKS & OBLIGATIONS

1

Liabilities

IIIT Delhi, as a data fiduciary, may face liabilities for breaching its obligations under the DPDP Act, including penalties and compensation to affected data principals.

2

Penalties

The DPDP Act provides for penalties for non-compliance, including fines and other enforcement measures.

PROCEDURAL NOTES & COMPLIANCE STEPS*Actionable steps for compliance and grievance redressal***COMPLAINTS**

1. You may file a complaint with the Data Protection Board (DPB) established under the DPDP Act, alleging a breach of your rights as a data principal.

GRIEVANCE REDRESSAL

1. The DPB may investigate and redress grievances related to the processing of personal data.

PENALTIES AND COMPLIANCE AUDITS

1. The DPB may impose penalties and conduct compliance audits to ensure that data fiduciaries, including IIIT Delhi, are complying with the DPDP Act.

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